

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX----- X
LUIS MUNOZ,**SUMMONS**

Plaintiff, Index No.:

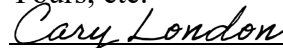
-against-

The Basis of Venue is:
Location of IncidentNYPD POLICE DETECTIVE JOSEPH FRANCO, Shield
No. 7972, NYPD POLICE DETECTIVE ROLANDO
CARBONEIL, SHIELD NO. 006831 and NYPD POLICE
OFFICERS JOHN/JANE DOES NUMBERS 1-10,Plaintiff designates Bronx
County as the place of trial.Defendants.
----- X**To the above-named Defendants:**

You are hereby summoned to answer the Verified Complaint in this action, and to serve a copy of your Verified Answer to the Verified Complaint, or, if the Verified Complaint is not served with this Summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this Summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
October 20, 2022

Yours, etc.



Cary London, Esq.

Shulman-Hill, PLLC

Attorneys for Plaintiff

1 State Street Plaza

15th Floor

New York, New York 10004

(212) 203-1090

TO: NYPD POLICE DETECTIVE JOSEPH FRANCO, Shield No. 7972; 1 Police Plaza, NY,
NY 10003

NYPD POLICE DETECTIVE ROLANDO CARBONEIL, Shield No. 006831; 1 Police
Plaza, NY, NY 10003

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

----- X

LUIS MUNOZ,

Plaintiff, VERIFIED COMPLAINT

-against-

NYPD POLICE DETECTIVE JOSEPH FRANCO, Shield
No. 7972, NYPD POLICE DETECTIVE ROLANDO
CARBONEIL, SHIELD NO. 006831 and NYPD POLICE
OFFICERS JOHN/JANE DOES NUMBERS 1-10,

JURY TRIAL DEMANDED

Defendants.

----- X

Plaintiff LUIS MUNOZ, by his attorneys, Shulman-Hill, PLLC, as and for his Verified Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of Plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the Fourth, Fifth, and Fourteenth Amendments to the United States Constitution. On August 30, 2014, at approximately 7:30 p.m., plaintiff LUIS MUNOZ, while lawfully present at Macombs Road and Nelson Avenue, County of the Bronx, was subject to an unlawful stop, question, frisk, search, false arrest, and false imprisonment by the defendant New York City Police officers. Plaintiff was falsely arrested by defendant officers and convicted of the Criminal Possession and Sale of a Controlled Substance after NYPD Detective Joseph Franco, Shield No. 7972, lied under oath about the facts of his case, causing the plaintiff to lose his freedom, job, possessions, relationships, and family members, and resulting in physical, mental, economic, and emotional injury. Thereafter, Plaintiff was unlawfully imprisoned at the 46th Precinct Police Station and Bronx County Central Booking before he was sentenced to incarceration for approximately two and a half years, which he served at several New York State Correctional Facilities. Plaintiff was denied his right to due process and a fair trial for false charges, which were dismissed and sealed on September 24, 2021, after Detective Franco was indicted on at least sixteen (16) criminal counts of perjury and official misconduct in relation to narcotics arrests during his time with the NYPD. Plaintiff was deprived of his constitutional rights when the individual defendants unlawfully stopped, questioned, frisked, searched, confined, subjected to excessive force, falsely arrested, falsely imprisoned, and denied plaintiff the right to due process and a fair trial in violation of the Fourth, Fifth, and Fourteenth Amendments to the United States Constitution.

PARTIES

2. Plaintiff LUIS MUNOZ was a resident of the state of New York.
3. NYPD POLICE DETECTIVE JOSEPH FRANCO, Shield No. 7972, was at all times relevant herein an officer, employee, and agent of the New York City Police Department.
4. NYPD POLICE DETECTIVE JOSEPH FRANCO, Shield No. 7972, was at all times relevant herein, assigned to the 46th Precinct.
5. NYPD POLICE DETECTIVE JOSEPH FRANCO, Shield No. 7972 is being sued in his individual and official capacities.
6. NYPD POLICE DETECTIVE RONALDO CARBONEIL, Shield No. 006831, was at all times relevant herein an officer, employee, and agent of the New York City Police Department.
7. NYPD POLICE DETECTIVE RONALDO CARBONEIL, Shield No. 006831, was at all times relevant herein, assigned to the 46th Precinct.
8. NYPD POLICE DETECTIVE NYPD POLICE DETECTIVE JOSEPH FRANCO, Shield No. 7972 is being sued in his individual and official capacities.
9. NYPD POLICE OFFICERS JOHN/JANE DOES NUMBERS 1-10 are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.
10. NYPD POLICE OFFICERS JOHN/JANE DOES NUMBERS 1-10 were at all times relevant herein, assigned to the 46th Precinct.
11. NYPD POLICE OFFICERS JOHN/JANE DOES NUMBERS 1-10 are being sued in their individual and official capacities.
12. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

13. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

14. Plaintiff in furtherance of his causes of action brought pursuant to New York State law filed a timely Notice of Claim against the CITY OF NEW YORK in compliance with the Municipal Law Section 50 and in accordance with New York State law.

15. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

16. Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

17. August 30, 2014, at approximately 7:30 p.m., plaintiff LUIS MUNOZ, while lawfully present at Macombs Road and Nelson Avenue, County of the Bronx, when the defendant police officers unlawfully stopped, questioned, searched, and falsely arrested Plaintiff without probable cause or legal justification.

18. It was at this point that the defendant NYPD officers began to unlawfully arrest the plaintiff, restraining him with metal handcuffs.

19. At no time relevant herein did Plaintiff commit a crime or violate the law in any way, nor did the police officers have an objective reason to accuse Plaintiff of committing a crime or violating the law in any way.

20. At no point did Defendant Officers recover any drugs, weapons, or other illegal contraband from Plaintiff or from a location that was in Plaintiff's possession, custody, or control.

21. Nevertheless, Plaintiff was unlawfully arrested and handcuffed by defendant officers without legal justification or probable cause.

22. Plaintiff did not resist arrest.

23. The Defendant Officers then placed Plaintiff in the back of an NYPD van and transported him against his will to the 46th Precinct, where he was unlawfully fingerprinted, photographed, and placed in a holding cell.

24. While in the cell, the plaintiff was subjected to an unlawful strip search, and again no contraband was found.

25. Plaintiff was taken into an interrogation room for approximately 45 minutes to be questioned by defendant officers about a suspect in a photograph; the plaintiff maintained that he did not know the man.

26. At no time relevant herein did Plaintiff commit a crime or violate the law in any way, nor did the police officers have an objective reason to accuse Plaintiff of committing a crime or violating the law in any way.

27. At no point did Defendant Officers recover any drugs, weapons, or other illegal contraband from Plaintiff or from a location that was in Plaintiff's possession, custody, or control.

28. The defendant police officers, including Detective Franco, provided the Bronx County District Attorney's Office with the false, misleading and/or incomplete information that Plaintiff committed a crime.

29. Specifically, the defendant police officers and Detective Franco falsely stated to the Bronx County District Attorney's Office that the plaintiff had committed the crime of Criminal Possession and Sale of a Controlled Substance.

30. Detective Franco lied and said Plaintiff sold him drugs, which was absolutely not true, and Plaintiff denied.

31. Plaintiff's legal aid attorney told him that no jury would believe his word over an NYPD Detective, and thus told him he had to plead guilty.

32. Plaintiff plead guilty as a result of Detective Franco's false testimony against him, and was sentenced to two and a half years in state prison.

33. Since his conviction on these false charges, the plaintiff has suffered significant financial and familial loss, as well as physical, mental, emotional, and economic injury: he missed the deaths and funerals of a beloved aunt as well as an older brother; he missed family weddings, vacations, and the births of nieces and nephews; he missed the formative years of his oldest son, as well as the birth of his youngest son, whom he did not even get to meet in person until his son was four years old; he still struggles with his hip injury, which has never healed properly due to years of neglect and denial of proper medical treatment, and he cannot stand or walk for long periods of time - this combined with the fact that he was arrested before he was even able to graduate high school severely limits his opportunities for employment; he has relocated his family several times and has ultimately ended up in South Carolina in an attempt to avoid potential run-ins with the NYPD, afraid for his well-being and mentally and emotionally traumatized.

34. On April 24, 2019, Detective Joseph Franco, Shield No. 7972, was indicted on at least 16 criminal counts, which included perjury and official misconduct, specifically in

relation to the drug-related arrests he made during his career with the NYPD. He was found to have fabricated evidence and misrepresented facts in court in several cases with which he was involved.

35. As a result of Detective Franco's indictment, the Bronx County District Attorney reinvestigated Plaintiff Luis Munoz case; Detective Franco was the arresting officer for the drug sale charges against him.

36. The charges which were falsely made against the Plaintiff by the defendant officers were dismissed and sealed and his indictment was vacated on or around September 24, 2021.

37. Some of the police officer defendants observed the violation of Plaintiff's rights under the Constitution of the United States and New York State Law and did nothing to prevent their fellow officers from unjustifiably searching, seizing, using excessive force, falsely arresting and imprisoning, humiliating, assaulting, battering, maliciously prosecuting, and denying Plaintiff the right to due process and a fair trial.

38. The unlawful search, seizure, use of excessive force, false arrest and imprisonment, and denial of Plaintiff's right to a fair trial by the individually named defendants caused Plaintiff to sustain physical, psychological, and emotional trauma.

FIRST CAUSE OF ACTION

Violation of Plaintiff's Fourth and Fourteenth Amendment Rights

39. The Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs marked 1 through 38 with the same force and effect as if more fully set forth at length herein.

40. The individually named police officer defendants, while acting in concert and within the scope of their authority, caused Plaintiff to be seized, unlawfully searched, falsely arrested, falsely imprisoned, and maliciously prosecuted without reasonable suspicion and/or probable cause, in violation of Plaintiff's right to be free of an unreasonable seizure under the Fourth Amendment of the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

41. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

SECOND CAUSE OF ACTION

False Arrest and False Imprisonment

42. The Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs marked 1 through 41 with the same force and effect as if more fully set forth at length herein.

43. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine Plaintiff and, in fact, confined Plaintiff, and Plaintiff was conscious of the confinement. In addition, Plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

44. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the laws of the State of New York and the United States Constitution.

45. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

46. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

47. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

THIRD CAUSE OF ACTION

Unlawful Stop, Question, and Frisk

48. The Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs marked 1 through 47 with the same force and effect as if more fully set forth at length herein.

49. The illegal approach, pursuit, stop, questioning, and frisk employed by defendants herein terminated Plaintiff's freedom of movement through means intentionally applied.

50. The conduct of defendants in stopping, frisking, and searching Plaintiff was performed under color of law and without any reasonable suspicion of criminality or other constitutionally required grounds.

51. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the laws of the State of New York.

52. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

53. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

FOURTH CAUSE OF ACTION

Unlawful Search

54. The Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs marked 1 through 53 with the same force and effect as if more fully set forth at length herein.

55. The illegal approach, pursuit, stop and search employed by defendants herein terminated Plaintiff's freedom of movement through means intentionally applied.

56. Defendants lacked probable cause to search Plaintiff.

57. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the laws of the State of New York.

58. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

59. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

60. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

FIFTH CAUSE OF ACTION

Violation of Plaintiff's Fifth and Fourteenth Amendment Rights

Denial of Right to Fair Trial/Due Process

61. The Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs marked 1 through 60 with the same force and effect as if more fully set forth at length herein.

62. Defendants, individually and collectively, manufactured and/or withheld false evidence and forwarded this false evidence to prosecutors in the Bronx County District Attorney's Office.

63. Defendants filled out false and misleading police reports and forwarded them to prosecutors in the Bronx County District Attorney's Office.

64. Defendants signed false and misleading criminal court affidavits and forwarded them to prosecutors in the Bronx County District Attorney's Office.

65. In withholding/creating false evidence against Plaintiff LUIS MUNOZ, and in providing/withholding information with respect thereto, defendants violated plaintiff's constitutional right to due process and fair trial under the New York State Constitution and under the Due Process Clause of the Fifth Amendment to the Constitution of the United States and to be free to deprivation of liberty under the Fourteenth Amendment to the United States Constitution.

66. As a result of the foregoing, Plaintiff LUIS MUNOZ sustained, inter alia, loss of the right to due process and a fair trial, loss of liberty, emotional distress, embarrassment and humiliation, and deprivation of his constitutional rights.

67. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

68. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

69. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

SIXTH CAUSE OF ACTION

Violation of Plaintiff's Fourth And Fourteenth Amendment Rights

70. The Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs marked 1 through 69 with the same force and effect as if more fully set forth at length herein.

71. The use of excessive force by defendants by, amongst other things, tightly handcuffing him, strip searching him, and repeatedly punching him, constituted objectively unreasonable physical seizures of Plaintiff in violation of his rights under the Fourth and Fourteenth Amendments to the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

72. Defendants were at all times agents, servants, and employees acting within the scope of his employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

SEVENTH CAUSE OF ACTION

Deliberate Indifference to Medical Needs

73. The Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs marked 1 through 72 with the same force and effect as if more fully set forth at length herein.

74. Despite being aware that Plaintiff was suffering through severe pain and numbness in his hands and wrists, as well as lacerations on his face and knee, and required treatment from medical professionals, defendants delayed Plaintiff's medical treatment and refused to administer and/or properly procure immediate and adequate medical attention.

75. This delay in medical treatment for Plaintiff's injuries resulted in permanent pain and injury that could have been prevented had Plaintiff received treatment in a timely manner.

76. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the laws of the State of New York.

77. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Department of Corrections, which are therefore responsible for their conduct.

78. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

79. As a result of the aforementioned conduct of defendants, Plaintiffs sustained injuries, including but not limited to emotional and psychological injuries.

EIGHTH CAUSE OF ACTION

Failure to Intervene

80. The Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the foregoing paragraphs with the same force and effect as if more fully set forth at length herein.

81. The defendants that did not physically touch Plaintiff but were present when other officers violated Plaintiff's Constitutional Rights had an affirmative duty to intervene on behalf of Plaintiff, whose constitutional rights were being violated in their presence by other officers.

82. Defendants failed to intervene to prevent the unlawful conduct described herein.

83. As a result of the foregoing, Plaintiff suffered significant mental and emotional injuries, his liberty was restricted for an extended period of time, he was put in fear for his safety, and he was humiliated and subject to other physical constraints.

84. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the United States Constitution.

85. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

NINTH CAUSE OF ACTION

Malicious Prosecution

86. The Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs 1 through 85 with the same force and effect as if more fully set forth at length herein.

87. The acts and conduct of the defendants constitute malicious prosecution under the laws of the State of New York and New York State common law.

88. Defendants commenced and continued a criminal proceeding against the plaintiff.

89. There was actual malice and an absence of probable cause for the criminal proceeding against Plaintiff and for the charges for which they were prosecuted.

90. The prosecution and criminal proceedings terminated in Plaintiff's favor on the aforementioned dates.

91. Plaintiff was subjected to a post-arraignment deprivation of liberty sufficient to implicate Plaintiff's Fourth Amendment rights.

92. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the laws of the State of New York and the United States Constitution.

93. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

94. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to emotional, physical, economic, and psychological injuries.

TENTH CAUSE OF ACTION

Fabrication of Evidence

95. The Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs 1 through 94 with the same force and effect as if more fully set forth at length herein.

96. Defendant officers misrepresented the facts of their case against the plaintiff by creating and/or tampering with evidence, which they then used to commence and continue a criminal proceeding against the plaintiff.

97. Plaintiff was subjected to a post-arraignment deprivation of liberty sufficient to implicate Plaintiff's Fourth Amendment rights.

98. At least one of the officer defendants involved in this misrepresentation of facts and fabrication of evidence was indicted for perjury and official misconduct by the Kings County District Attorney on the aforementioned date, almost a decade after the plaintiff's wrongful conviction and subsequent incarceration, causing several of the cases he was involved with to be reinvestigated and their sentences overturned.

99. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the laws of the State of New York and the United States Constitution.

100. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

101. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to physical, emotional, economic, and psychological injuries.

FIFTEENTH CAUSE OF ACTION

Violation of Article I, § 12 of the New York State Constitution

102. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

103. Such conduct breached the protections guaranteed to plaintiff by the New York State Constitution, including but not limited to, Article 1, §§ 1, 6, 8, 9, 11, and 12, and including the following rights:

- i. freedom from unreasonable search and seizure of her person and property;
- ii. freedom from arrest without probable cause;
- iii. freedom from false imprisonment, that being wrongfully detained without good faith, reasonable suspicion, or legal justification, and of which wrongful detention plaintiff was aware and did not consent;
- iv. freedom from the lodging of false charges against him by police officers and prosecutors, including on information and belief, by some or all of the individual defendants; and

v. freedom from deprivation of liberty without due process of law.

104. As a direct and proximate result of defendants' deprivations of Plaintiff's rights, privileges, and immunities guaranteed by the New York State Constitution, Plaintiff suffered physical, economic and emotional injuries, as well as a deprivation of liberty.

105. As a result of the above tortious conduct, Plaintiff was caused to suffer physical, economic, and emotional injuries, as well as a deprivation of liberty.

106. As a result of the above unconstitutional conduct, the City of New York is liable for the conduct of the Individual Defendants and any damages they caused under the doctrine of *respondeat superior*.

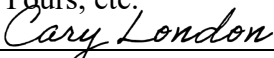
JURY DEMAND

107. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, Plaintiff LUIS MUNOZ demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys' fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law. That the Plaintiff recover the cost of the suit herein, including reasonable attorney's fees pursuant to 42 U.S.C. § 1988.

DATED: New York, New York
October 20, 2022

Yours, etc.


Cary London, Esq.
Shulman-Hill, PLLC
Attorneys for Plaintiff
1 State Street Plaza
15th Floor
New York, New York 10004
(212) 203-1090

TO: NYPD POLICE DETECTIVE JOSEPH FRANCO, Shield No. 7972; 1 Police Plaza, New York, NY, 10003

NYPD POLICE DETECTIVE ROLANDO CARBONEIL, Shield No. 006831; 1 Police Plaza, NY, NY 10003

ATTORNEY'S VERIFICATION

CARY LONDON, an attorney duly admitted to practice before the Courts of the

State of New York, affirms the following to be true under the penalties of perjury:

I am a member of the law firm of **SHULMAN AND HILL PLLC**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff is because Plaintiff does not reside in the county wherein I maintain my office.

DATED: New York, New York
October 20, 2022

Cary London
CARY LONDON